

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 08/27/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Khaleeque – Probate 01304890	MOTION FOR SANCTIONS (ROA 438) Executor Abid Bodla ("Executor") moves pursuant to Code of Civil Procedure section 128.5 for an order imposing monetary sanctions and striking "current outstanding motions/petitions filed by Dilshad Khaleeque. (ROA 438.) Subdivision (a) of Code of Civil Procedure section 128.5 provides in relevant part that "[a] trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." Subdivision (b) provides that, for purposes of section 128.5: (1) "Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The mere filing of a complaint without service thereof on an opposing party does not constitute "actions or tactics" for purposes of this section. (2) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party. Subdivision (f)(1)(B) provides: "If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected." To obtain sanctions under sections 128.5 or 128.7, a party typically must follow a two-step procedure. (<i>Transcon Financial, Inc. v. Reid & Hellyer, APC</i> (2022) 81 Cal.App.5th 547, 550.) It must first serve a motion for sanctions on the offending party. (<i>Ibid.</i>) Service of the motion triggers the 21-day safe harbor period during which the moving party may not file the motion. (<i>Ibid.</i>) "That is because the offending party may avoid

	sanctions by withdrawing the challenged pleading during that 21-day period." (<i>Ibid.</i>) If the offending party does not withdraw or correct the challenged action, the moving party may file the sanctions motion. (<i>Ibid.</i>) Here, Executor claims that sanctions are warranted due to Mr. Khaleeque's filing of frivolous pleadings, motions, and other papers. In particular, the moving papers focus on a document filed by Mr. Khaleeque titled, "Petition and Declaration of Dilshad Khaleeque for Return of Property, Pleading Title, Damages for Concealment, Elder Abuse, and Objection to Appointment of Administrator on Ex Parte Basis" (the "Purported Petition"). The Purported Petition was filed on 10/23/25 as an ex parte application. (ROA 387.) On 10/27/25, the court denied the ex parte application (i.e., the Purported Petition) and issued an order prohibiting Executor from selling any gold bars; the court did not deem the ex parte application a petition or otherwise set a hearing on the Purported Petition. (ROA 405.) Moreover, the court's records do not reflect that the Purported Petition was ever filed separately from the ex parte application. The instant motion for sanctions was not served until 11/7/25. (ROA 439, Niven Decl., ¶ 2, Ex. A.) At that time, Ms. Nivens emailed Mr. Khaleeque a copy of the instant motion and told him that she would file it unless he withdrew the Purported Petition. (<i>Ibid.</i>) Mr. Khaleeque responded by stating that he would not withdraw it. Neither Ms. Nivens nor Mr. Khaleeque acknowledge that the court's ruling of 10/27/25 already resolved the Purported Petition, thereby leaving nothing to be withdrawn. Based on the foregoing, Executor did not comply with the safe harbor provision of Code of Civil Procedure section 128.5. Though Executor waited 21 days after service before filing the motion, the motion was served after the Purported Petition had already been denied. Thus, Mr. Khaleeque did not have the opportunity to withdraw the Purported Petition during the safe harbor period. Courts strictly apply the safe harbor provision of Section 128.5(f). If a moving party fails to comply with it, the sanctions motion must be denied. (<i>Zarate v. McDaniel</i> (2023) 97 Cal. App. 5th 484, 489, citing <i>CPF Vaseo Associates, LLC v. Gray</i> (2018) 29 Cal.App.5th 997, 1007 and <i>Transcon Financial, Inc. v. Reid & Hellyer, APC</i>, <i>supra</i>, 81 Cal.App.5th at p. 551.) Strict compliance with the safe harbor provision also requires the motion served before filing to include a hearing date, time, and location in compliance with Code of Civil Procedure section 1010. (<i>Galleria Plus, Inc. v. Hanmi Bank</i> (2009) 179 Cal.App.4th 535, 538 ("<i>Galleria</i>") [dealing with the safe harbor
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		provision of Code of Civil Procedure section 128.7].) In <i>Galleria</i>, the notice of motion stated that the motion would be heard "on AAA at BBB."(<i>Ibid.</i>) Similarly, in the instant case, the notice of motion stated "PENDING" in place of the date, time, and department in the caption, and the date, time, and location were left blank in the first paragraph of the notice. The court notes that there are two unpublished opinions that agree with the holding in <i>Galleria</i> insofar as it held that serving a motion without a hearing date and time failed to comply with Code of Civil Procedure section 1010. However, these unpublished opinions distinguish their cases in which the notice of motion was served with a date and time that was changed after the motion was filed, finding such notice complied with Section 1010. (See <i>Kerkorian v. Mandekic</i>, No. B252861, 2016 WL 1714213 and <i>Whitehill v. Valente</i>, No. A137613, 2014 WL 2758472.) In this particular case, even if the date and time were included in the initial moving papers, it would not have been sufficient to comply with the safe harbor provision because it was impossible for Mr. Khaleeque to withdraw the offending pleading during the safe harbor period as discussed above. Since Plaintiff did not strictly comply with the safe harbor provisions, the motion for sanctions must be denied. Attorney Leslie L. Niven is ordered to file and serve notice of this ruling.
		MOTION FOR WILL CONTEST AND TO REMOVE EXECUTOR (ROA 458) Before the court is a motion filed by Dilshad Khaleeque on 12/4/25 entitled, "Motion Grounds for Will Contest and Removing Abid Bodla." (ROA 458.) Mr. Khaleeque brought a similar motion on 4/15/24. (ROA 81.) On 1/8/25, the court deemed that motion (ROA 81) a Will Contest and ordered Mr. Khaleeque to serve it with a summons. (ROA 199.) On 3/11/25, the court continued the hearing on the motion deemed Will Contest and ordered Mr. Khaleeque to file and serve a summons by 6/6/25. (ROA 248.) Mr. Khaleeque did not file and serve a summons. On 6/11/25, Karman Dilshad and Jibran Dilshad filed a motion to dismiss the Will Contest (ROA 81) for failure to prosecute. (ROA 313.) On 12/10/25, the court granted the motion and dismissed the Will Contest. (ROA 478.) The court will not deem the instant motion (ROA 458) a Will Contest. To contest the will, Mr. Khaleeque must follow the proper procedures set forth in Probate Code section 8000 et seq.

		Further, any claims that the Executor should be removed for cause must be brought by Petition. (Prob. Code § 8500.) The court makes no finding as to the timeliness or merits of any Will Contest or Petition. The motion is DENIED in its entirety as procedurally defective. The court declines to rule on the objection (ROA 716) filed by Executor Abid Bodla as it is procedurally defective. There is no clear indication as to which objection pertains to which motion or declaration. Moreover, the objections consist primarily of argument rather than evidentiary objections. Thus, the objections need not be sustained or overruled. Attorney Leslie L. Niven is ordered to file and serve notice of this ruling.
		MOTION TO CORRECT OR AUGMENT MINUTE ORDERS (ROA 446) Before the court is a motion filed by Dilshad Khaleeque on 12/4/25 entitled, "Motion to Correct / Augment Minutes of Hearing." (ROA 446.) Mr. Khaleeque is requesting that the court's minute orders of 7/8/25 (ROA 346) and 9/16/25 (ROA 365) be "corrected" to include the content of any Canon 3E(2) disclosures made, advisement of the right to object, and the status of any waiver or objection. The minute order for 7/8/25 states, "All parties orally notified of the Court's disqualification disclosure pursuant to Canon 3E(2) of the California Code of Judicial Ethics." (ROA 346.) Mr. Khaleeque did not appear at this hearing. (Ibid.) The minute order for 9/16/25 (ROA 365) does not reflect that Canon 3E(2) disclosures were made. The court has obtained and reviewed the transcript for the 9/16/25 hearing, and it does not reflect that the disclosure was made. Mr. Khaleeque has not presented any evidence that either minute order needs to be corrected or augmented. From the court's review, the minute orders in question are both accurate and sufficient. Contrary to Mr. Khaleeque's contention, Judge Rowe was not required to make any Canon 3E(2) disclosures at the time of either hearing. Subdivision (a) of Canon 3E(2) requires a judge to "disclose information that is reasonably relevant to the question of

		disqualification under Code of Civil Procedure section 170.1, even if the judge believes there is no actual basis for disqualification." (Cal. Code Judicial Ethics, canon 3E(2)(a).) Here, Mr. Khaleeqe filed a Statement of Disqualification pursuant to Code of Civil Procedure section 170.1. (ROA 426.) In striking said Statement, Judge Rowe specifically found no basis for disqualification. (ROA 434.) Subdivision (b) of Canon 3E(2) governs the disclosures of campaign contributions in trial court elections. The duty to make disclosures under Canon 3E(2)(b) "commences no later than one week after receipt of the first contribution or loan, and continues for a period of two years after the candidate takes the oath of office, or two years from date of the contribution or loan, whichever event is later." (Cal. Code Judicial Ethics, canon 3E(2)(b)(iii).) Here, Judge Rowe took the oath on 11/16/22, and no party to this action has made any contribution or loan to Judge Rowe at any time. Judge Rowe first took the bench in this case on 3/11/25. Thus, any Canon 3E(2) disclosures that have been, or will be, made by Judge Rowe in this case are purely discretionary, not mandatory. Based on the foregoing, the motion is DENIED.
		MOTION TO DEEM VEXATIOUS LITIGANT (ROA 652) Executor Abid Bodla ("Executor") moves pursuant to Code of Civil Procedure section 391(b) for an order deeming Dilshad Khaleeqe a Vexatious Litigant. (ROA 652.) Code of Civil Procedure section 391(b) defines a vexatious litigant in relevant party, as follows: (b) "Vexatious litigant" means a person who does any of the following: (1) In the immediately preceding seven-year period has commenced, prosecuted, or maintained in propria persona at least five litigations other than in a small claims court that have been (i) finally determined adversely to the person or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing. (2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the

	same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. “[L]itigation’ includes any petition, application, or motion other than a discovery motion, in a proceeding under the Family Code or Probate Code, for any order.” (Code of Civ. Proc. § 391.7(d).) Here, Executor argues, and the court agrees, that Mr. Khaleeque meets all three definitions of a vexatious litigant set forth in Code of Civil Procedure section 391(b). In the preceding 7 years, Mr. Khaleeque, in propria persona, has brought "at least" five litigations that were determined adversely to him. (See e.g., ROAs 59, 76, 81, 83, 150, 153, 357, 387, 446, 450, 452, 454, 456, 458, 460, 570, and 631.) Further, Mr. Khaleeque has repeatedly sought to relitigate claims and issues that had already been decided against him. As only one example, Mr. Khaleeque has repeatedly sought orders to challenge the appointment of Executor, even several years after the petition for appointment had been approved, and after the court had denied his efforts to have the order for appointment stricken or set aside. (See e.g., 24, 62, 81, 153, 207, 387, 450, 452, 454, 456, 570, 610, 631.) Finally, Mr. Khaleeque has repeatedly filed motions, pleadings, and other papers that are unmeritorious and frivolous. (See e.g., in addition to all of the aforementioned ROAs, ROAs 150, 158, 174, 182, and 234.) It falls within the trial court’s discretion to determine what qualifies as “repeated” and “unmeritorious.” (Code Civ. Proc. § 391(b)(3); See also <i>Morton v. Wagner</i> (2007) 156 Cal.App.4th 963, 971-72 [dozens of motions in a single action].) Even if each filing viewed in isolation might be reasonable, multiple requests for the same relief or for reconsideration of prior rulings may qualify as repeated and unmeritorious. (See <i>Golin v. Allenby</i> (2010) 190 Cal. App. 4th 616, 632.) Vexatious litigant statutes are enforced in California to curb misuse of the court system by self-represented litigants who repeatedly file baseless actions or attempt to relitigate issue that were previously determined against them. These efforts waste the time and resources of the court system and others. (<i>Shalant</i>
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		<i>v. Girardi</i> (2011) 51 Cal.4th 1164.) While “repeatedly” is not defined, in <i>Holcomb v. U.S. Bank Nat. Ass’n</i> (2005) 129 Cal.App.4th 1494, the court found that “repeatedly” refers to a past pattern or practice on the part of the litigant that carries the risk of repetition in the case at hand. Here, there is clearly a pattern on Mr. Khaleeqe's part of making repeated, unmeritorious filings. Based on the record before the court, the court determines that Dilshad Khaleeqe is a vexatious litigant pursuant to Code of Civil Procedure section 391(b)(1),(2), and (3). Executor's request that Mr. Khaleeqe be ordered to post security "if" he files his Purported Petition is DENIED because the Purported Petition is no longer pending. (ROA 405.) No part of this order prohibits Executor from requesting security pursuant to Code of Civil Procedure section 391.1 should Mr. Khaleeqe file any other petition at any time. Executor's request for a prefiling order is GRANTED pursuant to Code of Civil Procedure section 391.7. In addition to serving notice of this order, Executor is ordered to promptly file the Prefiling Order-Vexatious Litigant (VL-100).
		MOTIONS TO STRIKE (ROAs 450, 452, 454, and 456) On 12/4/25, Dilshad Khaleeqe filed four motions to strike: ROAs 450, 452, 454, and 456. - ROAs 450 and 452 are titled as follows: "Notice of Motion and Motion to Strike Petition / And for Sanctions for Fraud upon the Court / Notice of Motion and Motion to Strike Petition." These two motions appear to be identical, except that ROA 450 has a "Certificate of Death" and an "Affidavit to Amend a Record" attached. - ROAs 454 and 456 are titled as follows: "Notice of Motion and Motion to Strike and for Sanctions Based on Fraudulent Death Record." These two motions appear to be identical, except that ROA 454 has an "Affidavit to Amend a Record" and an "Amendment to Death Record" attached. All four motions seek to strike "the Petition filed by Jibran Dilshad" due to the alleged use of a fraudulent death certificate that lists the decedent Ghazala Khaleeqe ("Decedent") as divorced. Pursuant to the court's records, the only petitions filed by Jibran Dilshad are the initial and amended Petitions for Probate of Will and for Letters Testamentary. (ROAs 2 and 44.) Both of these

		pleadings clearly indicate (at page 3, item 5) that Decedent was survived by a spouse. Likewise, the trial brief submitted by Jibran Dilshad states that Decedent was in a dissolution proceeding that was dismissed after she passed away. (ROA 260, 5:15-18.) There is no evidence presented by Mr. Khaleeqe, or reflected in the court's records, that the court relied upon a defective death certificate in granting the Petition to have Abid Bodla appointed as Executor. Furthermore, the Amended Petition has already been resolved by court order. (ROA 365.) Mr. Khaleeqe cites no authority for a request to strike a pleading that is no longer at issue. The court declines to rule on the objections filed Executor Abid Bodla (ROAs 712, 713, 714, and 715) as they are procedurally defective. There is no clear indication as to which objection pertains to which motion. Moreover, the objections consist of argument rather than evidentiary objections. Thus, the objections need not be sustained or overruled. All four motions to strike (ROA 450, 452, 454, and 456) are DENIED. Attorney Leslie L. Niven is ordered to file and serve notice of this ruling.